

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 23-02
BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

JOINT MOTION TO EXTEND EXPERT WITNESS DEADLINES

Complainant 20230930-DK-BUTTERFLY-1, Inc. f/k/a Bed Bath & Beyond Inc. (“Complainant”) and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited (together, “Respondents”) (collectively, “the Parties”), by their respective undersigned counsel, and, pursuant to 46 C.F.R. Sections 502.69 and 502.102, hereby file this Joint Motion to Extend Expert Witness Deadlines (“Motion”) and in support thereof state that good cause for the requested extension exists, as follows:

A. Procedural Posture

1. Pursuant to the Presiding Officer’s March 21, 2024, Briefing Schedule, Complainant is to file its Opening Brief by October 22, 2024. The Presiding Officer recognized that the Parties’ March 15, 2024, Joint Status Update acknowledged that the Parties anticipated requesting an additional extension of time to complete discovery, and the Presiding Officer ordered that such further extension request should “conclude all discovery by September 10, 2024, and should allow the parties to meet these briefing deadlines.”

B. The Relief Requested

2. The Parties have met and conferred regarding deposition scheduling and completion of discovery prior to September 10, 2024, and jointly request the following amended schedule to complete discovery within that time period:

- July 19, 2024: Report of Complainant's experts, if any, to be provided to Respondent.
- July 26, 2024: Respondent to identify rebuttal expert witnesses, if any.
- August 1, 2024: Last date to serve supplemental discovery requests.
- August 15, 2024: Respondent to provide Complainant with rebuttal experts' reports, if any.
- August 22, 2024: Depositions of expert witnesses may begin.
- September 10, 2024: Close of discovery.

3. Pursuant to 46 CFR § 502.71(a), counsel for Complainant and counsel for Respondents have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought. The Parties each agree to the relief requested in this Motion.

WHEREFORE, Complainant Bed Bath & Beyond Inc. and Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited, pray that their Joint Motion to Extend Briefing and Other Deadlines be granted.

Dated: May 21, 2024

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Respectfully submitted,

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